

Copyright Act, 2023

(Applicable to Members, Companies, and Governments within the TREDT Union)

Preamble

To provide a legal framework for the protection, registration, and enforcement of intellectual creations within the TREDT Union, this Act establishes the rights and duties of authors, inventors, theorists, and creators of original works, ensuring fair use, attribution, and proprietary rights.

PART I: Preliminary Provisions

Article 1: Short Title and Commencement

This Act shall be known as the **Copyright Act, 2023**, and shall come into force on such date as notified by the TREDT Legislative House.

Article 2: Definitions

1. **Union** means the TREDT Union.
 2. **Work** includes any book, article, paper, software, theory, program, or documented policy.
 3. **Creator** means any individual, member, company, or government body that originates a work.
 4. **Trademark** means a recognized sign, symbol, name, or theoretical idea that identifies the origin or ownership of intellectual content.
 5. **Patent** means exclusive rights granted for software, algorithms, encryption mechanisms, and server or protocol-level innovations.
 6. **Copyright** means exclusive rights over the reproduction, distribution, adaptation, and publication of creative literary or artistic works.
 7. **Registrar** refers to the Union Copyright Registrar appointed under this Act.
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PART II: Copyright

Article 3: Subject Matter Eligible for Copyright

The following may be registered under copyright:

- Books and manuscripts
- Articles and research papers
- TREDT Union Acts, constitutional documents, and polity papers
- Literary and artistic expressions, including graphical symbols and designs

Article 4: Copyright Ownership

1. The creator of a work shall be the first owner of the copyright.
2. Where the work is created under a contract of employment or commission, the employer or commissioning body shall own the copyright, unless otherwise agreed.

Article 5: Duration of Copyright

1. Copyright shall subsist for:
 - **70 years** from the death of the author (natural persons)
 - **120 years** from the date of creation (institutional or government works)
2. Upon expiry, the work shall enter the **TREDT Public Domain**.

Article 6: Rights of the Copyright Holder

The holder has the right to:

- Reproduces the work in any material form
- Publish or distribute copies
- Perform or display the work publicly
- Translate or adapt the work
- License or assign rights to others

Article 7: Registration of Copyright

1. Registration is optional but provides prima facie legal evidence.
 2. An application must include:
 - Description of the work
 - Date of creation
 - Authorship and declaration of originality
 3. Registration shall be issued by the **Copyright Office of the Union**.
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PART III: Trademark

Article 8: Eligible Items for Trademark

Trademarks may be granted for:

- Names, logos, and emblems
- Slogans and domain identities
- Ideas and original theories associated with a specific body

Article 9: Registration of Trademarks

1. Applications must be submitted to the **Union Trademark Registry**.
2. A Trademark shall be valid for **20 years**, renewable every 10 years.
3. Trademarks must not infringe on existing marks or create public confusion.

Article 10: Exclusive Use and Enforcement

Owners of registered trademarks have exclusive rights to use the mark and may prohibit:

- Unauthorized usage
 - Dilution or defamation of the mark
 - Passing off or imitation in commercial settings
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PART IV: Patent

Article 11: Patentable Subject Matter

Patents shall be granted for:

- Programs and algorithms used within the TREDT Union's technical framework
- Server encryption systems and networking protocols
- Original technical inventions with practical utility

Article 12: Duration and Scope

1. A patent shall be granted for **5 years** from the date of filing or **for life**.
2. Patent protection includes:
 - Exclusive rights to make, use, or sell the invention
 - Rights to license or assign the patent
 - Protection against unauthorized duplication or deployment

Article 13: Application for Patent

1. Applicants must submit:
 - Technical specifications and schematics
 - Description of utility and innovation
 - Proof of originality and non-obviousness
 2. The Union Patent Examiner shall conduct a technical review before approval.
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PART V: Infringement and Remedies

Article 14: Infringement

A person commits infringement if they:

- Reproduces or distribute a work without permission
- Use a trademark or patent without authorization
- Claim ownership over another's intellectual property

Article 15: Civil and Criminal Remedies

1. Injunctions, compensatory damages, and seizure of infringing materials may be ordered.
 2. Criminal penalties may include:
 - Fines up to 500,000 Emeralds
 - Or any other penalties ordered by the Court (any level)
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PART VI: Fair Use and Public Access

Article 16: Fair Use Doctrine

Use of copyrighted or trademarked work is permissible for:

- Educational purposes
- Review, criticism, or parody
- Governmental or judicial citations

Article 17: TREDT Public Domain

All expired copyrights, trademarks, and patents become freely usable by Union members.

PART VII: Miscellaneous

Article 18: Union Copyright Authority

The **Union Intellectual Property Commission (UIPC)** shall oversee:

- Registration processes
- Dispute resolution
- Promotion of innovation and creativity

Article 19: Appeal

Any decision under this Act may be appealed before the **Imperial Court of Justice** within 60 days of notice.

Schedule I: Fees and Validity

- Copyright:
 - Individual: 100 Emeralds
 - Company: 250 EMERALDS
- Trademark: 300 EMERALDS (valid 10 years)
- Patent: 1,000 EMERALDS (valid 20 years)